

Provided that this section shall not prevent persons from wearing any uniform or dress in the course of a stage play or music hall or circus performance.

9.—(1) In this Act, unless the context otherwise requires,— Interpretation
and short
title.

The expression “chief officer” means in the case of the Royal Irish Constabulary the Inspector-General, and in the case of the Dublin Metropolitan Police the Chief Commissioner;

The expression “pensions” includes gratuities; and

The expression “pensions and allowances of members” includes pensions and allowances of widows or children of members.

For the purpose of the provisions of this Act as to representative bodies, a detective officer of the Dublin Metropolitan Police shall be deemed to belong to the same rank as a constable of that force.

(2) This Act may be cited as the Constabulary and Police (Ireland) Act, 1919.

CHAPTER 69.

An Act to provide for the establishment of an Industrial Court and Courts of Inquiry in connection with Trade Disputes, and to make other provision for the settlement of such disputes, and to continue for a limited period certain of the provisions of the Wages (Temporary Regulation) Act, 1918. [20th November 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

PART I.

INDUSTRIAL COURTS.

1.—(1) For the purpose of the settlement of trade disputes in manner provided by this Act, there shall be a standing Industrial Court, consisting of persons to be appointed by the Minister of Labour (in this Act referred to as “the Minister”), of whom some shall be independent persons, some shall be persons representing employers, and some shall be persons representing workmen, and in addition one or more women. Constitution
of Industrial
Court.

(2) A member of the Industrial Court shall hold office for such term as may be fixed by the Minister at the time of his appointment.

(3) For the purpose of dealing with any matter which may be referred to it, the Court shall be constituted of such of the members of the Court as the president may direct.

(4) The president of the Court, and the chairman of any division of the Court, shall be such person, being one of the independent persons aforesaid, as the Minister may by order, given either generally or specially, direct.

Reference of
disputes to
Industrial
Court or to
arbitration.

2.—(1) Any trade dispute as defined by this Act, whether existing or apprehended, may be reported to the Minister by or on behalf of either of the parties to the dispute, and the Minister shall thereupon take the matter into his consideration and take such steps as seem to him expedient for promoting a settlement thereof.

(2) Where a trade dispute exists or is apprehended, the Minister may, subject as hereinafter provided, if he thinks fit and if both parties consent, either—

- (a) refer the matter for settlement to the Industrial Court ;
or
- (b) refer the matter for settlement to the arbitration of one or more persons appointed by him ; or
- (c) refer the matter for settlement to a board of arbitration consisting of one or more persons nominated by or on behalf of the employers concerned and an equal number of persons nominated by or on behalf of the workmen concerned, and an independent chairman nominated by the Minister, and, for the purpose of facilitating the nomination of persons to act as members of a board of arbitration, the Minister of Labour shall constitute panels of persons appearing to him suitable so to act, and women shall be included in the panels.

(3) The Minister may refer to the Industrial Court for advice any matter relating to or arising out of a trade dispute, or trade disputes in general or trade disputes of any class, or any other matter which in his opinion ought to be so referred.

(4) If there are existing in any trade or industry any arrangements for settlement by conciliation or arbitration of disputes in such trade or industry, or any branch thereof, made in pursuance of an agreement between organisations of employers and organisations of workmen representative respectively of substantial proportions of the employers and workmen engaged in that trade or industry, the Minister shall not, unless with the consent of both parties to the dispute, and unless and until there has been a failure to obtain a settlement by means of those arrangements, refer the matter for settlement or advice in accordance with the foregoing provisions of this section.

Procedure of
Industrial
Court and on
arbitrations.

3.—(1) The Minister may make, or authorise the Industrial Court to make, rules regulating the procedure of that Court,

and those rules may, amongst other things, provide for references in certain cases to a single member of the Court, and provide for enabling the Court to sit in two or more divisions, and to sit with assessors, who may be men or women, for enabling the Court or any division of the Court to act notwithstanding any vacancy in their number, and for enabling questions as to the interpretation of any award to be settled without any fresh report or reference.

(2) The Minister may make rules regulating the procedure to be followed in cases where matters are referred for settlement to the arbitration of one or more persons appointed by the Minister.

(3) The Arbitration Act, 1889, shall not apply to any reference to the Industrial Court, or to any reference to arbitration under this Act. 52 & 53 Vict.
c. 49.

(4) Where the members of the Industrial Court are unable to agree as to their award, the matter shall be decided by the chairman acting with the full powers of an umpire.

(5) Where any trade dispute referred to the Industrial Court involves questions as to wages, or as to hours of work, or otherwise as to the terms or conditions of or affecting employment which are regulated by any Act other than this Act, the court shall not make any award which is inconsistent with the provision of that Act.

PART II.

COURTS OF INQUIRY.

4.—(1) Where any trade dispute exists or is apprehended, the Minister may, whether or not the dispute is reported to him under Part I. of this Act, inquire into the causes and circumstances of the dispute, and, if he thinks fit, refer any matters appearing to him to be connected with or relevant to the dispute to a court of inquiry appointed by him for the purpose of such reference, and the court shall, either in public or in private, at their discretion, inquire into the matters referred to them and report thereon to the Minister. Inquiry into
trade disputes.

(2) A court of inquiry for the purposes of this Part of this Act (in this Act referred to as "a court of inquiry") shall consist of a chairman and such other persons as the Minister thinks fit to appoint, or may, if the Minister thinks fit, consist of one person appointed by the Minister.

(3) A court of inquiry may act notwithstanding any vacancy in their number.

(4) The Minister may make rules regulating the procedure of any court of inquiry, including rules as to summoning of witnesses, quorum, and the appointment of committees and enabling the court to call for such documents as the court may determine to be relevant to the subject matter of the inquiry.

(5) A court of inquiry may, if and to such extent as may be authorised by rules made under this section, by order require any person who appears to the court to have any knowledge of the subject-matter of the inquiry to furnish, in writing or otherwise, such particulars in relation thereto as the court may require, and, where necessary, to attend before the court and give evidence on oath, and the court may administer or authorise any person to administer an oath for that purpose.

Reports.

5.—(1) A court of inquiry may, if it thinks fit, make interim reports.

(2) Any report of a court of inquiry, and any minority report, shall be laid as soon as may be before both Houses of Parliament.

(3) The Minister may, whether before or after any such report has been laid before Parliament, publish or cause to be published from time to time, in such manner as he thinks fit, any information obtained or conclusions arrived at by the court as the result or in the course of their inquiry :

Provided that there shall not be included in any report or publication made or authorised by the court or the Minister any information obtained by the court in the course of their inquiry as to any trade union or as to any individual business (whether carried on by a person, firm, or company) which is not available otherwise than through evidence given at the inquiry, except with the consent of the secretary of the trade union or of the person, firm, or company in question, nor shall any individual member of the court or any person concerned in the inquiry, without such consent, disclose any such information.

PART III.

**CONTINUANCE OF CERTAIN PROVISIONS OF WAGES
(TEMPORARY REGULATION) ACT, 1918.**

**Continuance
of 8 & 9
Geo. 5. c. 61.**

6.—(1) The provisions of the Wages (Temporary Regulation) Act, 1918, which are specified in the Schedule to this Act shall, subject to the modifications specified in the second column of that Schedule, continue in operation until the thirtieth day of September nineteen hundred and twenty.

(2) Where, before the passing of this Act, any matter has been referred for settlement under the Wages (Temporary Regulation) Act, 1918, and has not, at that date, been settled by the person or persons to whom it has been so referred, the Minister may by order transfer the matter to the Industrial Court, and where any such matter is so transferred the award of that court shall have effect as if it were an award of the interim court of arbitration made under that Act.

PART IV.

GENERAL.

7. Any expenses incurred by the Minister in carrying this Act into operation, including the expenses of the Industrial Court and of any court of inquiry, shall be paid out of moneys provided by Parliament. Remuneration and expenses.

8. For the purposes of this Act :—

The expression “trade dispute” means any dispute or difference between employers and workmen, or between workmen and workmen connected with the employment or non-employment, or the terms of the employment or with the conditions of labour of any person : Definition of “trade dispute.”

The expression “workman” means any person who has entered into or works under a contract with an employer whether the contract be by way of manual labour, clerical work, or otherwise; be expressed or implied, oral or in writing, and whether it be a contract of service or of apprenticeship or a contract personally to execute any work or labour.

9. Provision shall be made by rules under this Act with respect to the cases in which persons may appear by counsel or solicitor on proceedings under this Act before the Industrial Court, before an arbitrator or before a court of inquiry, and except as provided by those rules no person shall be entitled to appear on any such proceedings by counsel or solicitor. Rules as to appearance by counsel or solicitor.

10. This Act shall not apply to persons in the naval, military, or air services of the Crown, but otherwise shall apply to workmen employed by or under the Crown in the same manner as if they were employed by or under a private person. Application of Act to the Crown.

11. In the case of a trade dispute in the industry of agriculture, steps to be taken under this Act by the Minister of Labour shall be taken in conjunction with the Board of Agriculture and Fisheries. Provision in case of trade disputes in the industry of agriculture.

12.—(1) In the application of this Act to Scotland a reference to an oversman shall be substituted for any reference to an umpire, and a reference to the Board of Agriculture for Scotland shall be substituted for any reference to the Board of Agriculture and Fisheries. Application to Scotland and Ireland.

(2) In the application of this Act to Ireland, a reference to the Department of Agriculture and Technical Instruction for Ireland shall be substituted for any reference to the Board of Agriculture and Fisheries.

13. The Minister shall from time to time present to Parliament a report of his proceedings under this Act. Report to Parliament.

14. This Act may be cited as the Industrial Courts Act, 1919. Short title

Section 6.

SCHEDULE.**Provisions continued in
Force.****Modifications.**

S. 1 (Obligation to pay prescribed rates of wages).

As from the commencement of this Act the power to substitute any enforceable rate for the prescribed rate shall cease, without prejudice, however, to the enforceability of any rate substituted for the prescribed rate before the commencement of this Act, whether the substituted rate has or has not come into operation before that date, and without prejudice to the enforceability of any rate substituted for the prescribed rate by an award of the Industrial Court under Part III. of this Act.

Subs. (2) of s. 2 (Settlement of differences).

As from the commencement of this Act matters instead of being referred for settlement as provided in subs. (2) shall be referred to the Industrial Court.

The words "or as to whether any rate should be substituted for the prescribed rate" shall cease to have effect, and the proviso to subs. (2) shall not apply.

S. 3 (Powers of inquiry).

S. 4 (Definition of prescribed rates of wages).

As from the commencement of this Act a reference to the Industrial Court shall be substituted for any reference to the Interim Court of Arbitration.

S. 5 (Legal proceedings).

CHAPTER 70.

An Act to make further provision with respect to the Retirement and Pensions of County Court Judges and the employment of deputy judges, and for purposes in connection therewith. [23rd December 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. The office of county court judge shall be vacated at the end of the completed year of service in the course of which the holder of the office attains the age of seventy-two:

Provided that the Lord Chancellor may extend that age from time to time up to such later age (not exceeding seventy-

Compulsory
retirement of
judges.